

2:00 PM

LINE: 6

25-CIV-06841

ESTATE OF HUNTER BERGNER, BY AND THROUGH SUCCESSOR IN INTEREST, PATRIC, ET AL
VS. SAN MATEO COUNTY, A PUBLIC ENTITY, ET AL

ESTATE OF HUNTER BERGNER, BY AND THROUGH SUCCESSOR IN INTEREST, DENISSE O. GASTELUM
PATRIC ADAM M STODDARD
SAN MATEO COUNTY, A PUBLIC ENTITY

DEFENDANTS' ANNA KEHLER, MELODEE LEGASPI-TAPANG, KIM MARTINEZ, PATRICIA MARTINEZ, SAN MATEO COUNTY, AND SHERIFF CHRISTINA CORPUS' MOTION TO COMPEL RESPONSES TO WRITTEN DISCOVERY; REQUEST THAT ADMISSIONS BE DEEMED ADMITTED; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the motion brought by the County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher is **GRANTED IN PART**. Because the notice also lists Sheriff Christina Corpus, whose appearance or representation by moving counsel is not established in the submitted memorandum, this order grants no affirmative relief on her behalf absent clarification of her participation and service at the hearing.

BACKGROUND

On December 3, 2025, Defendants served Plaintiffs with Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Production of Documents (Set One), Requests for Admission (Set One), and Requests for Statements of Damages. (Stoddard Decl., filed Apr. 22, 2026, Ex. A.) Plaintiffs' counsel requested and was granted two extensions of time to serve responses. (Id., Ex. B.) On February 10, 2026, Plaintiffs served unverified responses to the discovery requests but failed to serve responses to the Requests for Statements of Damages. (Id., Ex. C.)

Because unverified responses are tantamount to no responses, Defendants' counsel met and conferred with Plaintiffs' counsel and requested that Plaintiffs serve verified responses, without objections, by April 17, 2026. (Id., Ex. D.) During the meet-and-confer discussions, Defendants' counsel advised that Defendants would file a motion to compel verified, objection-free responses and seek monetary sanctions if Plaintiffs failed to comply. Plaintiffs' counsel agreed to serve verified responses by April 17, 2026, but failed to do so.

Although the motion was filed several months ago, it remains unopposed. There is no evidence before the Court that Plaintiffs have served verified, objection-free responses to any of the above-referenced discovery requests.

INTERROGATORIES AND DOCUMENT DEMANDS

Within 15 calendar days after service of notice of entry of this order, each Plaintiff to whom Form Interrogatories (Set One), Special Interrogatories (Set One), or Requests for Production (Set One) were properly directed shall serve complete, code-compliant responses verified where required, and shall produce all responsive, nonprivileged documents as required by a proper production response. The unverified substantive responses described in the moving papers do not satisfy verification requirements. On the present record, objections to the demands have been waived by the failure to serve timely, code-compliant responses, subject to any statutory application for relief from waiver; the Court makes no advance merits ruling concerning a particular claim of relief from waiver or a specific production dispute not adequately presented. (Code Civ. Proc., §§ 2030.250, 2030.290, subds. (a)–(b), 2031.250, 2031.300, subds. (a)–(b).) The order does not require verification of objections-only responses unless otherwise mandated by statute.

STATEMENT OF DAMAGES

The motion to compel the overdue statement of the nature and amount of damages is **GRANTED** under Code of Civil Procedure section 425.11, subdivision (b). Within 15 calendar days after service of notice of entry of this order, each Plaintiff from whom the properly served request seeks damages shall serve the required statement identifying the nature and amount of damages sought on the applicable personal-injury or wrongful-death claim. A statement of damages is not an ordinary interrogatory response and should not be described as subject to discovery objection-waiver provisions.

REQUESTS FOR ADMISSION

The request to deem matters admitted is **GRANTED ONLY IF**, at the hearing, the Court finds that the particular responding Plaintiff has not served, before that hearing, verified proposed responses in substantial compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subds. (b)–(c).) If qualifying responses were timely served before the hearing, the request to deem that Plaintiff's RFAs admitted is **DENIED**, even if the responses were late or subject to a separate, properly noticed challenge. The Court must examine substantial compliance of the proposed responses as a whole, not merely the presence of a verification or objections. If no qualifying responses were served, the matters stated in each identified RFA, Set One, are deemed admitted as against the particular responding Plaintiff. Any request for further responses or relief from objection waiver must comply with the applicable statutory procedure and notice; it is not automatically granted in the alternative on this no-response motion.

MONETARY SANCTIONS

The request for \$3,300 in monetary sanctions is **GRANTED** as to those Plaintiffs and attorneys specifically identified as sanction targets in the notice of motion, provided the Court confirms that the April 22, 2026 notice identifies each target and that counsel's declaration supports the amount. Sanctions for a motion necessitated by failure to serve timely RFA responses are mandatory notwithstanding service of compliant responses before hearing. (Code Civ. Proc., §§ 2033.280, subd. (c), 2023.040.) The Court finds the two extensions, subsequent unfulfilled commitment to verify responses by April 17, 2026, and resulting motion practice support the amount requested, if supported by the billing declaration. Named sanctioned persons

shall pay \$3,300 jointly and severally to moving Defendants' counsel within 30 calendar days after service of notice of entry of this order. The order does not impose personal sanctions on nonparty minors absent a legally sufficient showing and express findings identifying the person responsible for the discovery misconduct.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 7

25-CIV-10194

JESSICA C. BRADLEY VS. SKYHOP GLOBAL LLC, A FLORIDA LIMITED LIABILITY COMPANY, ET AL

JESSICA C. BRADLEY
SKYHOP GLOBAL LLC, A FLORIDA LIMITED LIABILITY COMPANY

KYLE DECAMP
KATHRYN T MCGUIGAN

DEFENDANT SKYHOP GLOBAL LLC'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING:

For the reasons stated below, Defendant SkyHop Global LLC's motion is **GRANTED IN PART** solely to compel arbitration of the gateway enforceability dispute under Section V of the Mutual Arbitration Agreement. The Court has reviewed the operative complaint and finds that its pleaded facts do not establish a qualifying sexual-harassment dispute under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). The Court makes no present order compelling arbitration of the underlying merits claims or of claims against nonmoving defendant Paul Tokuda. The action against SkyHop is **STAYED** pending determination of the gateway dispute, as specified below.

BACKGROUND

Plaintiff filed the operative complaint on December 31, 2025, asserting 16 employment-related causes of action against SkyHop and individual defendant Paul Tokuda, including gender discrimination, retaliation, harassment/hostile work environment (Gov. Code, § 12940, subd. (j)), wage-and-hour claims, and wrongful termination. She alleges that she began working as a shuttle driver on July 9, 2025, and that SkyHop terminated her by telephone on October 22, 2025, following an October 11 noncollision braking incident. (Complaint, ¶¶ 11, 20–23.) Hailom's employment records identify October 25, 2025, as the date Plaintiff ceased employment. (Original Hailom Decl., ¶ 6.) The Court does not resolve that employment-date discrepancy on this motion. The complaint, including its Civil Rights Department (CRD) charge and right-to-sue exhibit, has now been reviewed together with the motion papers.

The complaint alleges that SkyHop subjected Plaintiff to disparate discipline: it terminated her after a driving incident but retained at least one similarly situated male employee allegedly involved in a comparable incident. Plaintiff also alleges that, after she discussed denied meal and rest breaks with coworkers, Defendants subjected her to heightened scrutiny and an intimidating and hostile work environment culminating in termination. (Complaint, ¶¶ 19, 22–24, 32, 38, 41–45.) The third cause of action incorporates these facts but does not identify particular sex-based remarks, unwanted sexual conduct, or other distinct harassing acts separate from alleged disparate discipline and scrutiny following workplace wage complaints. The Court does not require sexually explicit words or touching as a categorical prerequisite to harassment; the issue is the absence of factual allegations of harassing conduct because of sex. The CRD charge attached as